

24CHCV02702 24CHCV02702

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Case Number: 24CHCV02702 Hearing Date: August 24, 2026 Dept: F47

Dept. F47

Date: 8/24/26

TRIAL DATE: 11/2/26

Case #24CHCV02702

MOTION TO

COMPEL DEPOSITION

Motion filed on 4/28/26.

MOVING PARTY: Defendants Magic Mountain, LLC and Six
Flags Entertainment Corporation

RESPONDING PARTY: Third-Party Cassandra Fakhouri

NOTICE: ok

RELIEF REQUESTED: An order

compelling Cassandra Fakhouri to attend her deposition and provide testimony within 30 days of the date of the hearing on the motion. Additionally, Defendants request an order imposing sanctions against Cassandra Fakhouri and her attorneys of record, Law Offices of Arash Khorsandi, PC, in the amount of \$3,544.95, to be paid within 30 days.

RULING: The motion is granted as set forth
below.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of injuries allegedly sustained by Plaintiffs Serene Fakhouri (Serene); Cassandra Fakhouri (Cassandra's claims were dismissed with prejudiced on 11/19/25) and Reyan Fakhouri (Reyan) (collectively, Plaintiffs) as a result of riding the Riddler's Revenge roller coaster at Defendants Magic Mountain, LLC and Six Flags Entertainment Corporation's theme park. Reyan is the mother of Serene and Cassandra. (Second Amended Complaint (SAC) ¶4).

On 7/24/23, Plaintiffs visited Defendants' amusement park and rode the Riddler's Revenge roller coaster. (SAC ¶22). Plaintiffs allege that while on the ride, their heads and bodies were jerked around like rag dolls to the point where they all sustained traumatic brain injuries. (See SAC ¶¶25-27). Additionally, Plaintiffs allege that when they got off the ride, they exhibited post-concussion symptoms. *Id.* Serene also exhibited left facial droop and slurred speech. *Id.*

Plaintiffs have sued Defendant Magic Mountain LLC (Defendant) and others for: (1) General Negligence, (2) Premises Liability, (3) Negligent Infliction of Emotional Distress, (4) Strict Products Liability – Manufacturing Defect, (5) Strict Products Liability – Design Defect, and (6) Strict Products Liability – Failure to Warn.

Defendants first served Cassandra with a deposition notice in December of 2024, while she was still a party to the action. (Ostrosky Decl., Ex.B). Shortly before the scheduled deposition, Plaintiffs' counsel served an objection claiming that Cassandra and Plaintiffs' counsel were unavailable for the 3/13/25 deposition date. (*Id.*, Ex.C). Thereafter, Defendants served several deposition notices which ultimately did not result in Cassandra's deposition being taken due to scheduling conflicts, etc. (*Id.*, Ex.D-P).

In September of 2025, Plaintiffs' counsel informed defense counsel that they had authority to dismiss Cassandra's case. Counsel for the parties exchanged correspondence indicating that Cassandra's claims would be dismissed in exchange for a waiver of costs and Plaintiffs' counsel agreeing to produce Cassandra pursuant to a deposition notice rather than a deposition subpoena. (*Id.*, Ex.Q).

Thereafter, defense counsel, again, attempted to obtain dates for Cassandra's deposition without receiving a response. (Id., Ex.R, S). On 11/19/25, Cassandra dismissed her case with prejudice. (Id., Ex.T). However, Plaintiffs' counsel still did not provide dates for Cassandra's deposition.

Id. On 2/13/26, Defendants

served Plaintiffs' counsel with a notice of taking Cassandra's deposition on

4/20/26. (Id., Ex.U). On 4/10/26, Plaintiffs' counsel served an Objection

to the deposition on the ground that it was unilaterally set and Plaintiffs'

counsel was unavailable. (Id.,

Ex.W, X). Due to Plaintiffs' counsel's

repeated failure to provide a date certain for Cassandra's deposition, defense

counsel refused to take the deposition off calendar. (Id., Ex.X, Y). Thereafter, Cassandra failed to appear for

deposition on 4/20/26. (Id.,

Ex.Z).

On 4/28/26, Defendants filed and served the instant

motion seeking an order compelling Cassandra Fakhouri to attend her deposition

and provide testimony within 30 days of the date of the hearing on the

motion. Additionally, Defendants request

an order imposing sanctions against Cassandra Fakhouri and her attorneys of

record, Law Offices of Arash Khorsandi, PC, in the amount of \$3,544.95, to be

paid within 30 days. Cassandra has

opposed the motion and Defendants have filed a reply to the opposition.

ANALYSIS

The opposition indicates, and the reply concedes, that since

the filing of the motion, the parties have agreed to take Cassandra's

deposition on 8/28/26. (See Opposition,

p.2:7-8; Reply, p.2:12-13).

Additionally, Plaintiffs' counsel takes responsibility for the delay in

scheduling the deposition. (Gonzalez

Decl. ¶2). Further, Plaintiffs' counsel

has paid the courier reporter fee for the 4/20/26 deposition. (Gonzalez Decl. ¶10, Ex.3).

Based on the foregoing, there is no dispute that

Defendants are entitled to take Cassandra's deposition. The evidence establishes that Defendants repeatedly

noticed Cassandra's deposition, first as a party to the action and then as a

third-party witness pursuant to the agreement of counsel. The Court finds that an order compelling

Cassandra to appear for her deposition on 8/28/26 is warranted despite the parties agreement that the deposition will proceed on that date. In the event Cassandra and/or Plaintiffs' counsel fail to proceed with the deposition as agreed, such an order will allow Defendants to proceed with a motion for sanctions without the need to file another motion to compel and/or obtain an order compelling Cassandra to appear for her deposition.

Since Plaintiffs' counsel did not provide dates for Cassandra's deposition until after this motion was filed, Defendants' are entitled to sanctions for the fees and costs incurred in relation to the instant motion. CCP 2025.450(g)(1). However, the Court finds that the amount of sanctions requested is excessive and reduces the amount to \$1,860.00 for 4 hours to prepare the motion + 1 hour to review the opposition and prepare the reply + 1 hour to prepare for and appear at the hearing multiplied by \$300/hour + \$60 filing fee. (See Ostrovsky Decl. ¶27). As noted above, Plaintiffs' counsel has already paid the court reporter fee for the missed deposition. (See Gonzalez Decl. ¶10, Ex.3). Additionally, the Court finds that since Plaintiffs' counsel has taken responsibility for the delay in scheduling the deposition sanctions should only be imposed on Plaintiffs' counsel. (Gonzalez Decl. ¶2).

CONCLUSION

The motion is granted.
Cassandra Fakhouri is ordered to appear for her deposition on 8/28/26. Sanctions are imposed on Plaintiffs' counsel, Law Offices of Arash Khorsandi, PC, in the amount of \$1,860.00, payable within 30 days.